

they provide no evidence to support this and only make a conclusory assertion of prejudice. Due to this, Moving Defendants have failed to establish that the information at issue should be sealed.

Defendants BJJ, LLC dba Marvyn's Magic Theater and Jeff Hobson's Motion to File Good Faith Settlement Determination Motion Under Seal DENIED.

Documents submitted to the court for review shall be returned to moving parties, with the option Defendants resubmit the GFS Determination motion after service upon all parties.

Case Management Conference confirmed for 11.24.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2507178	DANIEL KELLY, AN INDIVIDUAL VS SAFEWAY INC.	MOTION TO BE RELIEVED AS COUNSEL FOR DANIEL KELLY, AN INDIVIDUAL

Tentative Ruling: No tentative ruling. Motion is continued to 10.06.26. Proofs of service for the Notice of Motion as well as the Declaration in Support of Motion to be Relieved do not indicate that Defendant Diebold Nixdorf, Inc. was served with the indicated documents. Counsel for Plaintiff directed to submit proofs of service of those documents no later than 9.28.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2509979	MAYS VS FCA US LLC	MOTION FOR SANCTIONS BY FCA US LLC

Tentative Ruling: CCP § 871.26 provides for expedited discovery procedures in lemon law actions. Specifically, CCP § 871.26(b) states: "Within **60 days** after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an **initial disclosure and documents** pursuant to subdivision (f), (g), and (h)." (CCP § 871.26(b) [emphasis added].)

CCP § 871.26(f) requires the plaintiff to provide 7 categories of documents, including the sales or lease agreement, current registration, finance and account information, repair orders, documents supporting incidental damages, information concerning the vehicle's market value, and written presuit communications with the manufacturer. (CCP § 871.26(f).)

CCP § 871.26(g) requires the plaintiff to disclose 11 categories of information, including the mileage, drivers, possession, location, collision history, aftermarket modifications, repair presentations not reflected in repair orders, pre-suit communications, and any need for an interpreter. (CCP § 871.26(g).)

CCP § 871.26(j)(1) provides, in pertinent part: "Unless the party failing to comply with this section shows **good cause**, . . . a court **shall** impose . . . [a] one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney [], paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b)." (CCP § 871.26(j)(1) [emphasis added].)

Defendant argues that monetary sanctions are mandatory because Plaintiff failed to serve its initial disclosure and documents within the statutory deadline and has not established good cause for its noncompliance.

While there is no published authority defining what constitutes “good cause” under section 871.26, the final Assembly Judiciary Committee Report on AB 1755, the enacting legislation for section 871.26, explains that the purpose of the discovery sanctions provision is to ensure “that attorneys faithfully adhere to these new discovery rules,” and “that the information most relevant to a lemon law case is disclosed early in the litigation process and without the need to argue costly discovery disputes before the court.” (Assem. Com. on Judiciary, Analysis of Assem. Bill No. 1755 (2023-2024 Reg. Sess.) as amended Aug. 30, 2024.)

Plaintiff timely served written initial disclosures within the 60-day statutory window on 1.09.26, but the undisputed evidence establishes that she produced no documents at that time. The service of written responses addressing each category did not necessarily satisfy the obligation to provide the documents listed in subdivision (f). Subdivision (f) also required Plaintiff to provide the “Sales or lease agreement” and a “Copy of current registration” by 1.09.26. (CCP § 871.26(b), (f)(1)-(2).) Unlike subdivision (f)(4), which permits a plaintiff to provide repair orders “or the location of where information relating to repair orders may be found,” subdivisions (f)(1) and (f)(2) do not contain an alternative location clause. Plaintiff did not produce either document by the deadline. The supplemental production still did not include the sales agreement or current registration. CCP § 871.26(f)(1) requires the *plaintiff* to provide the sales or lease agreement. CCP § 871.26(h)(5) separately requires the manufacturer to provide that agreement “if the manufacturer is in possession.” (CCP §§871.26(f)(1), (h)(5).) The overlapping subdivisions here however does not eliminate the other side’s obligation to produce.

Finally, Plaintiff has not shown good cause for the untimely production. The Declaration of attorney Lilly Pan does not identify what steps Plaintiff took before 1.09.26 or why Plaintiff could not produce timely. It is also silent as to what efforts Plaintiff made to obtain the sales agreement and current registration. Accordingly, the statute requires that monetary sanctions be imposed.

Defendant FCA’s Motion for Sanctions GRANTED.

Plaintiff’s Attorney directed to pay sanctions in the amount of \$1,500 within 15 business days of this order, pursuant to CCP § 871.26(j)(1).

OSC for 1.15.27 is vacated. Trial Setting Conference set for 3.15.27.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2600012	PEARCE VS ELLENZ	MOTION FOR TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION, SET TWO AS TO DEFENDANT TIMOTHY ELLENZ

Tentative Ruling: CCP §2025.450(b)(2), provides that a motion to compel further productions of documents “shall be accompanied by a meet and confer declaration under Section 2016.040, ...” (CCP §2025.450(b)(2).) CCP §2016.040 (a) provides that “[a] meet and confer declaration in support of a motion shall state facts showing a reasonable